

Patent, Design and Trademark Act, 1965

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PATENT, DESIGN AND TRADE MARK ACT, 2022

Date of Royal Seal and Publication

2022.5.14

Amending Acts

1. Patent, Design and Trade Mark (First Amendment) Act, 2044 2044.7.1
2. Administration of Justice Act, 2048 2048.2.16

Date of Authentication and Publication

3. Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063 2063.8.8
4. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.10.17
5. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 15 of the year 2022

An Act Made to Provide for the Registration of Patents, Designs and Trade Marks

Preamble: Whereas, it is desirable to make timely legal provisions relating to Patents, Designs and Trade Marks for the convenience and economic benefit of the general public;

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Deva has, with the advice and consent of the National Panchayat, enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Patent, Design and Trade Mark Act, 2022."

(2) This Act shall be extended throughout Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Patent" means any useful invention discovered by a new method or process of construction, operation or transmission of any substance or group of substances, or by any new principle or formula.

(b) "Design" means the shape, form or pattern of an object manufactured or made in any manner.

(c) Amended by the First Amendment. "Trade Mark" means a word, symbol or picture, or a combination of words, symbols and pictures, used by any firm, company or person to distinguish their manufactured goods or services provided by them from the goods or services of others.

(d) "Department" means the department designated by the Government of Nepal by publishing a notice in the Nepal Gazette, and until so designated, means the Department of Industry.

(e) "Schedule" means the Schedule to this Act.

(f) Added by the First Amendment. "Prescribed" or "As prescribed" means prescribed or as prescribed by the rules or orders made under this Act. Chapter-2

Patent

3. Acquiring Right over a Patent: (1) Any person desiring to acquire a right over a patent shall register such patent in his/her name according to this Act.

(2) Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.

No person shall copy a patent registered in any person's name under this Act, or use or cause to be used such patent in his/her own name or in the name of another without having it transferred to his/her name pursuant to Section 21d. or without obtaining written permission for its use. (3) Repealed by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063. 4. Application Required for Acquiring Right over a Patent: (1) Any person desiring to register a patent in his/her name shall submit an application to the Department in the format according to Schedule-1(a), stating the following particulars along with available evidence and proof: (a) Name, address and occupation of the person who invented the patent, (b) If the applicant himself/herself has not invented the patent, what kind of right and in what manner the applicant has obtained from the person who invented it, (c) The method of making, operating or using the patent, (d) If the patent is based on any specific principle or formula, such principle or formula. (2) Along with the application pursuant to Sub-section (1), the applicant shall also submit a map and drawing with description Amended by the First Amendment. of the patent and the application fee prescribed in Schedule-3(1)(a). 5. Examination by the Department: (1) After the application pursuant to Section 4 is filed, the Department shall, if deemed necessary, also taking advice from experts, conduct an examination and study to determine whether the patent mentioned in the application is a new invention and whether it is useful to the general public, and ascertain whether such patent shall be registered or not. (2) If it appears that any patent cannot be registered pursuant to Section 6, the Department shall notify the applicant that the patent cannot be registered according to his/her application. (3) Deleted by the First Amendment. 6.

Patent Not Registrable: (1) The Department shall not register a patent under this Act in the following circumstances: (a) If it is already registered in the name of another person, or (b) If the applicant has not invented the patent he/she desires to register and has not obtained any right from the person who invented it, or (c) If the patent sought to be registered is likely to have any adverse effect on the health, morality or ethics of the general public or on national interest, or (d) If it is contrary to any prevailing Nepal law. Provided that nothing contained in clause (a) shall be deemed to bar the cancellation of registration of a patent pursuant to Section 9. (2) In the circumstances mentioned in Sub-section (1), the Department may invalidate the registration of any registered patent. Provided that, before invalidating the registration of any patent pursuant to this provision, the patent holder shall be given a reasonable opportunity to show cause why the registration of such patent should not be invalidated. 7. Registration of Patent: (1) Except in the circumstances where registration is not permitted under Section 6, after an application is filed pursuant to Section 4 for registering a patent, the Department shall, after conducting the necessary examination pursuant to Section 5, issue a certificate of registration to the applicant in the format according to Schedule-2(a). (2) To obtain the certificate

pursuant to Sub-section (1), the applicant shall pay to the Department the registration fee prescribed in Schedule-3(1)(b). 7a. Publication of Registered Patent: (1) Added by the First Amendment. The Department shall publish in the Nepal Gazette, for the information of the general public, such patents registered under this Act as do not need to be kept confidential for the sake of national interest. (2) If any person desires to inspect or take copies of the description, map or drawing of a patent published pursuant to Sub-section (1), such person may inspect or take copies of such patent upon payment of the fee prescribed by the Department. (3) Within thirty-five days from the date of inspection or taking copies of the patent pursuant to Sub-section (2), any person may file a complaint at the Department regarding any objection against such patent. (4) If a complaint is lodged pursuant to Sub-section (3), the Department shall conduct an inquiry and take necessary action. Amended by the First Amendment.8.

Term of Patent: (1) Except in the case of renewal obtained pursuant to Section 23b., the right of the patent holder over a patent registered pursuant to Section 7 shall subsist only for a period of seven years from the date of registration. (2) Notwithstanding anything contained in Sub-section (1), in the case of the term of a patent registered before the commencement of this Section, the term shall subsist according to the provisions in force at the time of registration of such patent. After the expiration of that term, it shall be renewed pursuant to Section 23b. 9. Deleted by the First Amendment 10. Deposit of Map or Sample of Patent in Government Museum: The patent holder shall provide a copy of the map or sample of the article corresponding to the patent registered under this Act to the Amended by the First Amendment. National Archives as well. Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.11. Penalty for Violation of Section 3: If any person commits any of the following acts, by order of the Department, according to the gravity of the offense, the fine as follows shall be imposed and the goods or articles related to such offense shall be forfeited: (a) If any offense mentioned in Sub-section (2) of Section 3 is committed, a fine of up to five hundred thousand rupees. (b) If any attempt is made to commit any act mentioned in Sub-section (2) of Section 3, or if abetment is given to commit such act, a fine of up to two hundred fifty thousand rupees. Chapter-3 Design 12. Acquiring Right over Design: (1) Any person may register the design of any article made by him/her or caused to be made by him/her at the Department pursuant to Section 14 and acquire the right under this Act over such design. Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.(2) No person shall copy a design registered in any person's name under this Act, or use or cause to be used such design in his/her own name or in the name of another without having it transferred to his/her name pursuant to Section 21d. or without obtaining written permission for its use. 13.

Application for Registration of Design: (1) A person desiring to register any article made by him/her or caused to be made by him/her pursuant to Section 14 shall submit an application to the Department in the format according to Schedule-1(b), along with a map and drawing with description Added by the First Amendment. and four copies of the sample of the design. (2) A person submitting an application pursuant to Sub-section (1) shall, along with his/her application, pay to the Department the application fee prescribed in Schedule-3(2)(a). 14. Registration of Design: (1) Upon receipt of an application pursuant to Section 13, the Department shall register the design in the name of the applicant and issue a certificate according to Schedule-2(b). Provided that, such design shall not be registered pursuant to this Sub-section if the design is likely to harm the reputation of any person or institution, or have a negative effect on the morality or ethics of the general public, or be contrary to national interest, or if the design has already been registered in the name of another person. (2) To obtain the certificate pursuant to Sub-section (1), the applicant shall deposit with the Department the design registration fee prescribed in Schedule-3(2)(b). (3) If the Department believes that any condition mentioned in the proviso to Sub-section (1) exists, it may invalidate the registration of any design.

Provided that, before invalidating the registration of any design pursuant to this provision, the Department shall give the design holder a reasonable opportunity to show cause why the registration of such design should not be invalidated. Added by the First Amendment.14a. Term of Design: Except in the case of renewal obtained pursuant to Section 23b., the right of the design holder over a design registered pursuant to Section 14 shall subsist for a period of five years from the date of registration. 15. Penalty for Person Violating Section 12: If any person violates Sub-section (2) of Section 12 or uses a design invalidated by the Department pursuant to Sub-section (3) of Section 14, by order of the Department, according to the gravity of the offense, Added by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063. a fine of up to fifty thousand rupees may be imposed Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063. and all goods related to such offense shall be forfeited. Chapter-4 Trade Mark 16.

Acquiring Right over Trade Mark: (1) Any person may register the trade mark of his/her profession, trade or business at the Department pursuant to Section 18 and acquire the right under this Act over such trade mark. Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.(2) No person shall copy a trade mark registered in any person's name under this Act, or use or cause to be used such trade mark in his/her own name or in the name of another without having it transferred to his/her name pursuant to Section 21d. or without obtaining written permission for its use. 17. Application for Registration of Trade Mark: (1) A person desiring to register the trade mark of his/her profession, trade or business pursuant to Section 18 shall submit an application to the Department in the format according to Schedule-1(g), along with 4 copies of the sample of the trade mark. (2) A person submitting an application pursuant to Sub-section (1) shall, along with his/her application, pay to the Department the application fee prescribed in Schedule-3(3)(a). 18. Registration of Trade Mark: (1) Upon receipt of an application for registration of a trade mark pursuant to Section 17, after conducting necessary examination Added by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063. regarding such trade mark and giving a reasonable opportunity to any person to raise a claim or objection, and if a claim or objection is lodged, after investigating the same as well, if it is found appropriate to register, the Department shall register the trade mark in the name of the applicant and issue a certificate according to Schedule-2(g). Provided that, such trade mark shall not be registered if it appears that the trade mark is likely to harm the reputation of any person or institution, or have a negative effect on the morality, ethics or national interest of the general public, or affect the goodwill of another person's trade mark, or if the trade mark is found to have been already registered in the name of another person. (2) To obtain the certificate pursuant to Sub-section (1), the applicant shall pay to the Department the trade mark registration fee prescribed in Schedule-3(3)(b). (3) If the Department believes that any condition mentioned in the proviso to Sub-section (1) exists, it may invalidate the registration of any registered trade mark. Provided that, before invalidating any trade mark pursuant to this provision, the Department shall give the trade mark holder a reasonable opportunity to show cause why the registration of such trade mark should not be invalidated. Added by the First Amendment.18a.

Classification of Goods and Services for the Purpose of Trade Mark: (1) For the purpose of registering a trade mark relating to any goods or any type of service, the Government of Nepal may classify such goods or services by publishing a notice in the Nepal Gazette. (2) Separate applications shall be required for registering trade marks for goods or services falling under each class. (3) A trade mark registered for goods or services falling under one class pursuant to Sub-section (1) may also be registered for goods or services falling under another class. Added by the First Amendment.18b. Trade Mark Not to be Used: No trade mark shall be used as a registered trade mark without being registered at the Department. Added by the First

Amendment.18c. Period for Using Trade Mark: If a trade mark registered at the Department is not brought into use within one year from the date of registration, the Department may, after conducting necessary inquiry, cancel the registration of such trade mark. Added by the First Amendment.18d. Term of Trade Mark: Except in the case of renewal obtained pursuant to Section 23b., the right of the trade mark holder over a trade mark registered pursuant to Section 18 shall subsist for a period of seven years from the date of registration. Amended by the First Amendment.19. Penalty for Unlawful Use of Trade Mark: If any person violates Sub-section (2) of Section 16 or uses a trade mark invalidated pursuant to Sub-section (3) of Section 18 or violates Section 18b., by order of the Department, according to the gravity of the offense, a fine of up to one hundred thousand rupees may be imposed and all goods related to such offense shall be forfeited. Chapter-5 Miscellaneous 20. Appointment of Representative: For the purpose of performing any act or proceeding required to be done under this Act, a person may appoint his/her heir Added by the First Amendment. or legal practitioner, and all acts or proceedings done by such Amended by the First Amendment. heir or legal practitioner shall be deemed to have been done by the person himself/herself. 21. Repealed by the First Amendment Added by the First Amendment.21a.

Publication of Registered Design and Trade Mark: (1) The Department may publish, for the information of the general public, details regarding designs registered pursuant to Section 14 and trade marks registered pursuant to Section 18, as well as their renewal and invalidation. (2) If any person objects to details published pursuant to Sub-section (1), such person may file a complaint at the Department within thirty-five days from the date of publication of the said details. The Department shall investigate the complaint so filed and take necessary action. Added by the First Amendment.21b. Right Not Acquired Without Registration in Nepal: A person who has registered a patent, design or trade mark in a foreign country shall not have any right over such patent, design or trade mark in Nepal without registering the same in Nepal. Added by the First Amendment.21c. Registration of Foreign Patent, Design and Trade Mark: If an application is submitted to the Department for registration, along with the certificate of a patent, design or trade mark registered in a foreign country, the Department may register such patent, design or trade mark without even conducting an examination Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063. and shall provide to such registrant the facility of priority date according to the Paris Convention concluded in 1883 AD relating to the protection of industrial property. Amended by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063.21d.

Provision Relating to Assignment or Permission for Use of Patent, Design or Trade Mark: (1) A patent, design or trade mark registered in one's own name may be assigned to another person or permission may be granted in writing for its use. (2) If it is desired to assign or permit the use pursuant to Sub-section (1), both the patent, design or trade mark holder and the person desiring to take assignment of or use the patent, design or trade mark shall jointly submit an application to the Department, stating the fact, along with the prescribed fee. (3) Upon receipt of an application pursuant to Sub-section (2), the Department may permit the assignment or use of such patent, design or trade mark. (4) If the Department permits assignment pursuant to Sub-section (3), the patent, design or trade mark shall be transferred in the name of the person taking the assignment. (5) If the Department permits use pursuant to Sub-section (3), the particulars thereof shall be recorded in the register book and certificate kept at the Department, and a copy of the same shall be given to the person permitted to use. 22. Department to Maintain Register Books: The Department shall maintain separate books relating to patents, designs and trade marks, in a manner that shows both registration and invalidation of registration under this Act. 23. Repealed by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063 23a. Repealed by the Act to Amend Some Nepal Acts Relating to Export, Import and Intellectual Property, 2063 Added by the First Amendment.23b. Procedure for

Renewing Patent, Design and Trade Mark: (1) The patent holder, design holder and trade mark holder pursuant to Sections 8, 14a, and 18d. shall, within thirty-five days from the date of expiry of the period for using the patent, design and trade mark, submit an application in the format according to Schedules 2(d), 2(e) and 2(f) respectively and pay the fee according to Schedule-3, and obtain renewal thereof. (2) Renovation may be obtained up to six months after the expiry of the period for renewal pursuant to Sub-section (1) by paying a penalty of Amended by the First Amendment. one thousand rupees.

If renewal is not obtained even within that period, the registration of the patent, design and trade mark shall be automatically cancelled.

(3) Notwithstanding anything contained in Sub-sections (1) and (2), in the case of a patent, renewal may be obtained up to two times, making periods of seven-seven years each; in the case of a design, renewal may be obtained up to two times, making periods of five-five years each; and in the case of a trade mark, renewal may be obtained any number of times, making periods of seven-seven years each. 24. Copy of Certificate: If the certificate of registration of a patent, design or trade mark is lost, a copy of the certificate may be obtained from the Department by paying a fee of rupees Amended by the First Amendment. as prescribed. 25. Damages: If any person violates this Act in relation to any patent, design or trade mark registered under this Act, the Department may cause the person violating the same to pay to the registrant of the patent, design or trade mark a reasonable amount as damages for the loss actually suffered by the registrant from such violation. 26. Deemed Registered under this Act: Patents, designs and trade marks registered under the Patent, Design and Trade Mark Law promulgated in 1993 AD before the commencement of this Act shall be deemed to be registered under this Act from the date of commencement of this Act. Added by the First Amendment. 26a. Fees May be Altered: The Government of Nepal may alter the fees prescribed in Schedule-3 by publishing a notice in the Nepal Gazette. 27. Appeal May Lie: A person aggrieved by an order of the Department under this Act may appeal to the High Court within 35 days. 28. Repeal: The Patent, Design and Trade Mark Law promulgated in the year 1993 AD (Samvat 1993) is hereby repealed. Schedule-1 (a)

Amended by the First Amendment. Format of Application for Registration of Patent

To,
Shree

As I/We are the inventor(s) of , I/We have submitted this application for patent registration, attaching the principle, formula and complete description, map and drawing relating to the said article, and the application fee. I/We request you to register the patent in my/our name and issue a certificate thereof. Witness: ? 1

2

Signature of Applicant

Address: ?

Date: ?

Schedule-1 (b)

Amended by the First Amendment. Format of Application for Registration of Design

To,
Shree

As I/We have made / caused to be made according to the sample attached herewith, I/We have submitted this application for design registration, attaching the complete description, map and drawing, four copies of the sample, and the application fee.

I/We request you to register the design in my/our name and issue a certificate thereof. Witness: 1

2

Signature of Applicant

Address: ?

Date: ?

Schedule-1 (g)

Amended by the First Amendment. Format of Application for Registration of Trade Mark

To,

Shree

As I/We am/are to affix / have affixed the trade mark of the sample attached herewith on , I/We have submitted this application for trade mark registration, attaching four copies thereof and the application fee.

I/We request you to register the trade mark in my/our name and issue a certificate thereof. Witness: 1

2

Signature of Applicant

Address: ?

Date: ?

Schedule-2 (a)

Amended by the First Amendment. Format of Certificate of Patent Registration

Government of Nepal

Ministry of

Department of

Certificate No.: ?

Date: ?

Certificate of Patent Registration

This certificate is issued for the registration of the patent of , invented by , pursuant to Section 7 of the Patent, Design and Trade Mark Act, 2022. Director General

Date of Renewal Date of Expiry of Renewal Term Signature of Renewing Officer

Schedule-2 (b)

Format of Certificate of Design Registration

Government of Nepal

Ministry of

Department of

Certificate No.:-

Date:-

Certificate of Design Registration

This certificate is issued for the registration of the design of , made / caused to be made by , pursuant to Section 14 of the Amended by the First Amendment. Patent, Design and Trade Mark Act, 2022. Director General

Date of Renewal Date of Expiry of Renewal Term Signature of Renewing Officer

Schedule-2 (g)

Format of Certificate of Patent Registration

Government of Nepal

Ministry of

Department of

Certificate No.:-

Date:-

Certificate of Trade Mark Registration

This certificate is issued for the registration of the trade mark which has affixed / is to affix on , pursuant to Section 18 of the Amended by the First Amendment. Patent, Design and Trade Mark Act, 2022. Director General

Date of Renewal Date of Expiry of Renewal Term Signature of Renewing Officer

Schedule-2 (d)

Format of Application for Renewal of Patent

Added by the First Amendment.To,

Shree

As the registration period of the patent of , registered on date , has expired, the fee payable for renewal is attached. I/We request you to renew it. Signature of Applicant

Address:-

Date:-

Schedule-2 (e)

Format of Application for Renewal of Design

Added by the First Amendment.To,
Shree

As the registration period of the design of , registered on date , has expired, the fee payable for renewal is attached. I/We request you to renew it.

Signature of Applicant Address:- Date:- Schedule-2 (ch) Format of Application for Renewal of Trade Mark Added by the First Amendment.To, Shree As the registration period of the trade mark registered on date and affixed on has expired, the fee payable for renewal is attached. I/We request you to renew it. Signature of Applicant Address:- Date:- Schedule-3 Application, Registration and Renewal Fees for Patent, Design and Trade Mark S.No. Description of Fees Patent Design Trade Mark 1 Application Fee for Registration of Patent, Design and Trade Mark Rs. 2000/- Rs. 1000/- Rs. 1000/- 2 Application Amendment Fee Rs. 500/- Rs. 500/- Rs. 500/- 3 Registration Fee Rs. 10000/- Rs. 7000/- Rs. 5000/- 4 Transfer Fee Rs. 5000/- Rs. 3000/- Rs. 2000/- 5 Record Amendment and Certificate Correction Fee (excluding transfer) Rs. 2000/- Rs. 1000/- Rs. 1000/- 6 Fee for Information of Registration Details Rs. 750/- Rs. 750/- Rs. 500/- 7 Complaint and Opposition Fee Rs. 1000/- Rs. 1000/- Rs. 1000/- 8 Copy of Registration Certificate Fee Rs. 1000/- Rs. 1000/- Rs. 2000/- 9 Renewal Fee (a) Annual Rate for the First Time Rs. 5000/- Rs. 1000/- - (b) Annual Rate for the Second Time Rs. 750/- Rs. 2000/- - (g) Annual Rate for Trade Mark (any number of times) - - Rs. 500/- Amended as per the notice published in the Nepal Gazette on date 2062.5.13, effective from date 2062.6.1.

PATENT, DESIGN AND TRADEMARK ACT, 2022

Royal Seal and Publication Date

2022.5.14

Amending Acts

1. Patent, Design and Trademark (First Amendment) Act, 2044 2044.7.1
2. Administration of Justice Act, 2048 2048.2.16

Ratification and Publication Date

3. Act to Amend Some Nepal Acts Relating to Import, Export and Intellectual Property, 2063? 2063/8/8
4. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066? 2066.10.7
5. Act to Amend Some Nepal Acts, 2072 2072.11.13

Act No. 15 of the year 2022

An Act Made to Provide for the Registration of Patent, Design and Trademark

Preamble: Whereas, it is desirable to make timely legal provisions relating to Patent, Design and Trademark for the convenience and economic interest of the general public;

Therefore, His Majesty King Mahendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. Chapter?1

Preliminary Provisions

1. Short Title, Extent and Commencement: (1) This Act may be called the ?Patent, Design and Trademark Act, 2022?.

(2) It shall come into force throughout Nepal

(3) It shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) ?Patent? means any useful invention discovered through a new method or process regarding the construction, operation or transmission of any substance or group of substances, or through any new principle or formula.

(b) ?Design? means the shape, form or configuration of any article prepared or made in any manner.

(c) ?Trademark? means a word, sign or picture, or a combination of words, signs and pictures, used by any firm, company or person to distinguish their produced goods or services provided by them from the goods or services of others.

(d) ?Department? means the department designated by the Government of Nepal by publishing a notice in the Nepal Gazette, and until so designated, means the Department of Industries.

(e) ?Schedule? means the Schedule to this Act.

(f) ?Prescribed? or ?as prescribed? means prescribed or as prescribed by the rules or orders under this Act. Chapter?2

Patent

3. Acquiring Rights over a Patent: (1) Any person desiring to acquire rights over a patent must register such patent in their name pursuant to this Act.

(2) No person shall copy a patent registered in the name of any person pursuant to this Act, or use or cause to be used such patent in their own name or in the name of another without having it transferred to their name pursuant to Section 21D or without obtaining written permission for use.

(3) \$\\boxtimes\$

4.

Application to be Made for Acquiring Rights over a Patent: (1) Any person desiring to register a patent in their name shall submit an application to the Department in the format according to Schedule-1(A), stating the following particulars along with all available evidence:

(a) The name, address and occupation of the person who invented the patent,

(b) If the applicant themselves did not invent the patent, in what manner and what kind of right the applicant has obtained from the person who invented it,

(c) The method of making, operating or using the patent,

(d) If the patent is based on any specific principle or formula, that principle or formula.

(2) Along with the application pursuant to sub-section (1), the applicant shall deposit a map and drawing along with the description of the patent and the application fee as prescribed in Schedule-3(1)(a). 5. Inquiry

by the Department: (1) After an application pursuant to Section 4 is filed, the Department shall, taking advice from experts if deemed necessary, conduct an inquiry and study to ascertain whether the patent mentioned in the application is a new invention and whether it is useful to the general public, and determine whether such patent may or may not be registered.

(2) If it appears that a patent cannot be registered pursuant to Section 6, the Department shall notify the applicant that the patent cannot be registered according to their application.

(3) ?

6. Circumstances Where Patent Cannot be Registered: (1) The Department shall not register a patent under this Act in the following circumstances:

(a) If it is already registered in the name of another person, or

(b) If the applicant did not invent the patent themselves and has not obtained the right from the inventor, or

(c) If the patent sought to be registered would have any adverse effect on the health, morality or ethics of the general public or on national interest, or

(d) If it is contrary to any prevailing Nepali law. Provided that nothing contained in clause (a) shall be deemed to prevent the cancellation of a patent registration pursuant to Section 9.

(2) In the circumstances mentioned in sub-section (1), the Department may cancel the registration of any already registered patent. Provided that, before canceling the registration of any patent pursuant to this provision, the patent holder shall be given a reasonable opportunity to show cause why the registration of such patent should not be canceled. 7.

Registration of Patent: (1) Except in circumstances where registration is not permitted under Section 6, after an application for registering a patent is filed pursuant to Section 4, the Department shall conduct the necessary inquiry pursuant to Section 5 and issue a certificate of registration to the applicant in the format according to Schedule-2(A). (2) For obtaining the certificate pursuant to sub-section (1), the applicant shall pay to the Department the registration fee as prescribed in Schedule-3(1)(b). ?7A. Publication of Registered

Patent: (1) The Department shall publish in the Nepal Gazette, for the information of the general public, patents registered under this Act, except those that need to be kept secret for national interest. (2) If any person wants to inspect or take a copy of the details, map or drawing of a patent published pursuant to sub-section (1), they may do so upon paying the prescribed fee to the Department. (3) If any person has any objection to such patent, they may file a complaint with the Department within thirty-five days from the date of inspecting the patent or taking its copy pursuant to sub-section (2). (4) If a complaint is lodged pursuant to sub-section (3), the Department shall conduct an inquiry and take necessary action. +8. Term of Patent: (1) Except in the case where it is renewed pursuant to Section 23B, the right of the patent holder over a patent registered pursuant to Section 7 shall subsist only for a period of seven years from the date of registration. (2) Notwithstanding anything contained in sub-section (1), in respect of the term of a patent registered before the commencement of this section, the term shall subsist according to the provisions in force at the time of registration of such patent. After the expiry of that term, it shall be renewed pursuant to Section 23B. 9. ? 10.

Deposit of Map or Sample of Patent in Government Museum: The patent holder shall provide one copy of the map or sample of the article according to the patent registered under this Act to the +National Archives as well. ?11.

Penalty for Violating Section 3: If any person commits any of the following acts, they shall be liable to a fine

according to the gravity of the offense as follows by order of the Department, and the goods or articles related to such offense shall be confiscated: (a) For committing any offense mentioned in sub-section (2) of Section 3, a fine of up to five hundred thousand rupees. (b) For attempting to commit any act mentioned in sub-section (2) of Section 3 or for abetting the commission of such act, a fine of up to two hundred fifty thousand rupees. Chapter 3 Design 12. Acquiring Right over Design: (1) Any person may register the design of any article made or caused to be made by them with the Department pursuant to Section 14 and acquire the right under this Act over such design. (2) No person shall copy a design registered in the name of any person pursuant to this Act, or use or cause to be used such design in their own name or in the name of another without having it transferred to their name pursuant to Section 21D or without obtaining written permission for use. 13. Application for Registration of Design: (1) Any person desiring to register any article made or caused to be made by them pursuant to Section 14 shall submit an application to the Department in the format according to Schedule-1(B), along with a map and drawing with the description of such design and four copies of the sample. (2) The person submitting an application pursuant to sub-section (1) shall pay to the Department the application fee as prescribed in Schedule-3(2)(a) along with their application. 14. Registration of Design: (1) Upon application by any person pursuant to Section 13, the Department shall register such design in the name of the applicant and issue a certificate according to Schedule-2(B).

Provided that, if such design would cause harm to the reputation of any person or institution, or adversely affect the public order or morality, or be contrary to national interest, or if such design has already been registered in the name of another person, it shall not be registered under this sub-section. (2) For obtaining the certificate pursuant to sub-section (1), the applicant shall deposit with the Department the design registration fee as prescribed in Schedule-3(2)(b). (3) If it appears that any condition mentioned in the proviso to sub-section (1) exists, the Department may cancel the registration of any design. Provided that, before canceling the registration of any design pursuant to this provision, the Department shall give the design holder a reasonable opportunity to show cause why the registration of such design should not be canceled. 14A. Term of Design: Except in the case where it is renewed pursuant to Section 23B, the right of the design holder over a design registered pursuant to Section 14 shall subsist for a period of five years from the date of registration. 15. Penalty for Person Violating Section 12: If any person violates sub-section (2) of Section 12 or uses a design that has been canceled by the Department pursuant to sub-section (3) of Section 14, they may be liable to a fine of up to fifty thousand rupees according to the gravity of the offense by order of the Department, and all goods or articles related to such offense shall be confiscated. Chapter 4 Trademark 16. Acquiring Right over Trademark: (1) Any person may register the trademark of their established trade or business with the Department pursuant to Section 18 and acquire the right under this Act over such trademark. (2) No person shall copy a trademark registered in the name of any person pursuant to this Act, or use or cause to be used such trademark in their own name or in the name of another without having it transferred to their name pursuant to Section 21D or without obtaining written permission for use. 17. Application for Registration of Trademark: (1) Any person desiring to register the trademark of their established trade or business pursuant to Section 18 shall submit an application to the Department in the format according to Schedule-1(C), along with 4 copies of the sample of such trademark. (2) The person submitting an application pursuant to sub-section (1) shall pay to the Department the application fee as prescribed in Schedule-3(3)(a) along with their application. 18.

Registration of Trademark: (1) Upon application by any person for the registration of a trademark pursuant to Section 17, the Department shall conduct the necessary inquiry regarding such trademark, give a reasonable opportunity to any claimant or objector to make their claim or objection, investigate any claim or objection received, and if found appropriate for registration, register such trademark in the name of the applicant and

issue a certificate according to Schedule-2(C). Provided that, if such trademark appears likely to cause harm to the reputation of any person or institution, or adversely affect the public order, morality or national interest, or harm the goodwill of another person's trademark, or if such trademark is found to have already been registered in the name of another person, such trademark shall not be registered. (2) For obtaining the certificate pursuant to sub-section (1), the applicant shall pay to the Department the trademark registration fee as prescribed in Schedule-3(3)(b). (3) If it appears that any condition mentioned in the proviso to sub-section (1) exists, the Department may cancel the registration of any registered trademark. Provided that, before canceling any trademark pursuant to this provision, the Department shall give the trademark holder a reasonable opportunity to show cause why such trademark should not be canceled. ?18A. Classification of Goods and Services for the Purpose of Trademark: (1) For the purpose of registering a trademark related to any goods or any type of service, the Government of Nepal may, by publishing a notice in the Nepal Gazette, classify such goods or services. (2) Separate applications shall be submitted for registering the trademark of goods or services falling under each class. (3) A trademark registered for goods or services falling under one class pursuant to sub-section (1) may also be registered for goods or services falling under another class. \$loplus\$18B. Prohibition on Using Unregistered Trademark: No trademark shall be used as a registered trademark without registering it with the Department. \$loplus\$18C. Period for Using Trademark: If a trademark registered with the Department is not brought into use within one year from the date of registration, the Department may, after conducting the necessary inquiry, cancel the registration of such trademark. \$loplus\$18D. Term of Trademark: Except in the case where it is renewed pursuant to Section 23B, the right of the trademark holder over a trademark registered pursuant to Section 18 shall subsist for a period of seven years from the date of registration. \$clubsuit\$19.

Penalty for Unlawful Use of Trademark: If any person violates sub-section (2) of Section 16, or uses a trademark that has been canceled pursuant to sub-section (3) of Section 18, or violates Section 18B, they may be liable to a fine of up to \$nabla\$one hundred thousand rupees according to the gravity of the offense by order of the Department, and all goods related to such offense shall be confiscated. Chapter?5 Miscellaneous 20. Authority to Appoint Representative: For the purpose of performing any act or proceeding to be done by a person under this Act, such person may appoint their representative \$loplus\$or legal practitioner, and all acts or proceedings done by such ?representative or legal practitioner shall be deemed to have been done by the person themselves. 21. ? ?21A. Publication of Registered Design and Trademark: (1) The Department may publish, for the information of the general public, details regarding the design registered pursuant to Section 14 and the trademark registered pursuant to Section 18, their renewal and cancellation of registration. (2) If any person has an objection to the details published pursuant to sub-section (1), such person may file a complaint with the Department within thirty-five days from the date of publication of such details. The Department shall investigate the complaint so filed and take necessary action. ?21B. Right Not Effective Without Registration in Nepal: A trademark, design and patent registered in a foreign country shall not confer any right upon the concerned person in Nepal without registering such patent, design and trademark in Nepal. ?21C. Registration of Foreign Patent, Design and Trademark: If an application is submitted to the Department for registration, along with the certificate of a patent, design and trademark registered in a foreign country, the Department may register such patent, design and trademark without conducting any inquiry ?and shall grant the benefit of priority date to such registration holder according to the Paris Convention for the Protection of Industrial Property concluded in 1883. ?21D.

Provision relating to Transfer or Permission for Use of Patent, Design or Trademark: (1) A patent, design or trademark registered in one's name may be transferred to the name of another person, or written permission may be granted for its use.

(2) If transfer or permission for use is desired pursuant to sub-section (1), both the patent, design or trademark holder and the person wishing to receive the transfer of or use such patent, design or trademark shall jointly submit an application to the Department stating such fact, along with the prescribed fee.

(3) Upon receipt of an application pursuant to sub-section (2), the Department may allow the transfer or grant permission for use of such patent, design or trademark.

(4) If the Department grants permission for transfer pursuant to sub-section (3), the Department shall transfer the name of such patent, design or trademark to the name of the person receiving the transfer.

(5) If the Department grants permission for use pursuant to sub-section (3), the Department shall indicate the details thereof in the registration book and the certificate kept at the Department, and issue a copy thereof to the person granted permission for use. 22. Department to Maintain Register: The Department shall maintain separate books relating to patents, designs and trademarks, showing the registration and cancellation of registration under this Act. 23. ?

23A. ?

?23B. Procedure for Renewal of Patent, Design and Trademark: (1) The patent holder, design holder and trademark holder shall, within thirty-five days from the date of expiry of the period during which they are entitled to use the patent, design and trademark pursuant to Sections 8, 14A, and 18D, submit an application in the format according to Schedules-2(D), 2(E) and 2(F) respectively, pay the fee according to Schedule-3, and get it renewed.

(2) If the period for renewal under sub-section (1) is missed, renewal may be obtained within an additional six months upon payment of a late fee of ?one thousand rupees. If renewal is not obtained even within this period, the registration of the patent, design and trademark shall be automatically canceled.

(3) Notwithstanding anything contained in sub-sections (1) and (2), in the case of a patent, renewal may be obtained up to two times, each time for a further period of seven years; in the case of a design, renewal may be obtained up to two times, each time for a further period of five years; and in the case of a trademark, renewal may be obtained any number of times, each time for a further period of seven years. 24.

Copy of Certificate: If the certificate of registration of a patent, design or trademark is lost, a copy of the certificate may be obtained from the Department upon payment of the prescribed fee. 25. Damages: If any person suffers actual loss due to a violation of this Act by any person in relation to a registered patent, design or trademark, the Department may order the violator to pay a reasonable amount of compensation as damages to the registration holder. 26. Deemed Registered under this Act: Patents, designs and trademarks registered under the Patent, Design and Trademark Law promulgated in 1993 before the commencement of this Act shall be deemed to be registered under this Act from the date of commencement of this Act. ?26A. Alteration of Fees: The Government of Nepal may, by publishing a notice in the Nepal Gazette, alter the fees prescribed in Schedule?3. 27. Appeal Lie: Any person aggrieved by an order of the Department under this Act may appeal to the High Court within 35 days. 28. Repeal: The Patent, Design and Trademark Law promulgated in 1993 is hereby repealed. ? Added by the First Amendment. Note:? (1) Section 5 of the Act to Amend Some Nepal Acts Relating to Import, Export and Intellectual Property, 2063 is as follows:? 5. Effect of the lapse of the Ordinance to Amend Some Nepal Acts Relating to Import, Export and Intellectual Property, 2062: Upon the lapse of the Ordinance to Amend Some Nepal Acts Relating to Import, Export and Intellectual Property, 2062, unless a contrary intention appears, such lapse shall not,- (a) revive anything not in force or not subsisting at the time the Ordinance lapsed. (b) affect anything done or duly suffered under the

Ordinance before its lapse, (c) affect any right, privilege, obligation or liability acquired, accrued or incurred under the Ordinance, (d) affect any penalty, forfeiture or punishment incurred under the Ordinance, (e) affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment; and any such legal proceeding or remedy may be instituted, continued or enforced as if the Ordinance had not lapsed. (2) Words substituted by the Act to Amend Some Nepal Laws, 2063: "Government of Nepal" instead of "His Majesty's Government". (3) Words substituted by the Administration of Justice Act, 2073: "High Court" instead of "Appellate Court".

Schedule 1 (A) Format of Application to be Submitted for Registration of Patent

To, Shri Since I/We are the inventor(s) thereof, I/we hereby submit an application for the registration of the patent, attaching the principle, formula, and map and drawing along with complete description of the said article, and the application fee.

I/We request that the patent be registered in my/our name and a certificate thereof be issued. Witnesses: 1 Applicant's Signature

2 Address:

Date:

Nepal Law Commission

Schedule 1(B)

Format of Application to be Submitted for Registration of Design

To,

Shri

Since I/We have made / have caused to be made the as per the sample attached herewith, I/we hereby submit an application for the registration of the design, attaching the map and drawing along with complete description of the design, four copies of the sample, and the application fee. I/We request that the design be registered in my/our name and a certificate thereof be issued. Witnesses: 1 Applicant's Signature

2 Address:

Date:

Nepal Law Commission

*Schedule 1 (C)

Format of Application to be Submitted for Registration of Trademark

To,

Shri

Since I/We intend to use / have been using the trademark as per the sample attached herewith on , I/we hereby submit an application for the registration of the trademark, attaching four copies thereof and the application fee. I/We request that the trademark be registered in my/our name and a certificate thereof be issued. Witnesses: 1 Applicant's Signature

2 Address:?

Date:?

Schedule?2(A)

Format of Certificate of Registration of Patent

Government of Nepal

Ministry

Department

Certificate No.:?

Date:?

Certificate of Registration of Patent

This certificate is issued upon registration of the patent of invented by pursuant to Section 7 of the Patent, Design and Trademark Act, 2022. Director General

Date of Renewal Expiry Date of Renewal Period Signature of Renewing Officer
: : : : :

Nepal Law Commission

?Schedule?2(B)

Format of Certificate of Registration of Design

Government of Nepal

Ministry

Department

Certificate No.:?

Date:?

Certificate of Registration of Design

This certificate is issued upon registration of the design of made / caused to be made by pursuant to Section 14 of the Patent, Design and Trademark Act, 2022. Director General

Date of Renewal Expiry Date of Renewal Period Signature of Renewing Officer
: : :

?Schedule?2 (C)

Format of Certificate of Registration of Trademark

Government of Nepal

Ministry

Department

Certificate No.:? Date:?

Certificate of Registration of Trademark

This certificate is issued upon registration of the trademark intended to be used / being used on by pursuant to Section 18 of the Patent, Design and Trademark Act, 2022. Director General

Date ofRenewal Expiry Date ofRenewal Period Signature of RenewingOfficer

: : : : :

? Amended by the First Amendment. 22

?Schedule?2(D)

Format of Application to be Submitted for Renewal of Patent

To,

Shri

Since the registration period of the patent of registered on date has expired, the fee required for renewal is attached herewith. I/We request for renewal.